

5	Collins – Trust; 30-2024-01430606	Motion to Compel <i>CONTINUED to 11/18/2026 at 09:00 AM in Department CM08</i>
6	Miller – Trust; 30-2025-01511291	Demurrer Motion to Strike Trustee Paul Miller’s Demurrer to Petitioner Heather Dye’s Petition for: 1) Order Compelling Trustee to Account; 2) Removal and/or Suspension of Trustee; (3) Redress of Trustee Breaches; 4) Order Appointing Successor Trustee; 5) Disallowance of Fees; and 6) Attorney Fees and Cost (ROA 12) is OVERRULED. Trustee Paul Miller’s Motion to Strike Petitioner Heather Dye’s Petition for: 1) Order Compelling Trustee to Account; 2) Removal and/or Suspension of Trustee; (3) Redress of Trustee Breaches; 4) Order Appointing Successor Trustee; 5) Disallowance of Fees; and 6) Attorney Fees and Cost (ROA 15) is DENIED. I. PETITION On September 12, 2025, Heather Dye (Petitioner) filed a petition (Petition) arising out of the Revocable Trust Agreement of Miller Living Trust Dated April 18, 2013 (Trust) created by her mother Joann Miller (Decedent). According to the Petition, Decedent had four children, Petitioner, Respondent Paul Miller (Respondent), Donald Joseph Lawrence Miller, and Danny Miller, each of whom was a beneficiary of the Trust. Petitioner alleges Decedent became incapacitated in 2018 and Respondent took over as trustee of the Trust under a Durable Power of Attorney (DPOA). She asserts that between the time he took over as trustee and Decedent’s passing in February 2025, Respondent harmed the beneficial interests of the beneficiaries by wasting Trust assets